

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Murgio	Team: Squad #2	CCRB Case #: 202100913	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 03/05/2020 10:30 PM	Location of Incident: Rochester Avenue and St. Marks Avenue	Precinct: 77	18 Mo. SOL 9/5/2021	EO SOL 4/22/2022	
Date/Time CV Reported Mon, 02/01/2021 8:00 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 02/01/2021 8:00 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DTS Nicki Canady	02568	960316	PBBN SU
2. LSA Forrest Hirsch	00000	941905	PBBN SU
3. SGT Gabriel Cuevas	02226	945633	077 PCT
4. POM Gregory Trimarchi	09057	957227	100 DET

Officer(s)	Allegation	Investigator Recommendation
A.LSA Forrest Hirsch	Abuse: Lieutenant Forrest Hirsch stopped § 87(2)(b)	
B.LSA Forrest Hirsch	Abuse: Lieutenant Forrest Hirsch frisked § 87(2)(b)	
C.SGT Gabriel Cuevas	Abuse: Sergeant Gabriel Cuevas frisked § 87(2)(b)	
D.DTS Nicki Canady	Abuse: Police Officer Nicki Canady frisked § 87(2)(b)	
E.LSA Forrest Hirsch	Abuse: Lieutenant Forrest Hirsch searched § 87(2)(b)	
F.SGT Gabriel Cuevas	Abuse: Sergeant Gabriel Cuevas searched § 87(2)(b)	
G.DTS Nicki Canady	Abuse: Police Officer Nicki Canady searched § 87(2)(b)	
H.LSA Forrest Hirsch	Abuse: Lieutenant Forrest Hirsch failed to provide § 87(2)(b) with a business card.	
I.SGT Gabriel Cuevas	Abuse: Sergeant Gabriel Cuevas failed to provide § 87(2)(b) with a business card.	
J.DTS Nicki Canady	Abuse: Police Officer Nicki Canady failed to provide § 87(2)(b) with a business card.	
§ 87(2)(g), § 87(4-b)		

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b), § 87(2)(g)		

Case Summary

On February 1, 2021, § 87(2)(b) filed this complaint with the CCRB via telephone. The case was initially assigned to Investigator Evan Tims but was reassigned to Investigator Rachel Murgo on May 21, 2021, upon Investigator Tims' resignation from the Agency.

On March 5, 2020, at approximately 10:30 p.m., § 87(2)(b) was walking near the intersection of Rochester Avenue and Saint Marks Avenue in Brooklyn when an unmarked police vehicle approached him. Lieutenant Forrest Hirsch of Patrol Borough Brooklyn North exited the vehicle, followed by Sergeant Gabriel Cuevas of the 77th Precinct, and Police Officer Nicki Canady and Police Officer Gregory Trimarchi of Patrol Borough Brooklyn North Anti-Crime. Lieutenant Hirsch approached § 87(2)(b) took hold of him, and placed him against a nearby gate (**Allegation A: Abuse of Authority – Stop** – § 87(2)(g) Lieutenant Hirsch, Sergeant Cuevas, and Police Officer Canady frisked § 87(2)(b) then searched his pockets (**Allegation B: Abuse of Authority – Frisk** – § 87(2)(g) and **Allegation C: Abuse of Authority – Frisk** – § 87(2)(g) and **Allegation D: Abuse of Authority – Frisk** – § 87(2)(g) and **Allegation E: Abuse of Authority – Search (of person)** – § 87(2)(g) and **Allegation F: Abuse of Authority – Search (of person)** – § 87(2)(g) and **Allegation G: Abuse of Authority – Search (of person)** – § 87(2)(g) The officers did not recover anything from the frisk and search of § 87(2)(b) Lieutenant Hirsch, Sergeant Cuevas, and Police Officer Canady then returned to their car without providing § 87(2)(b) with a business card (**Allegation H: Abuse of Authority – Failure to Provide RTKA Card** – § 87(2)(g) and **Allegation I: Abuse of Authority – Failure to Provide RTKA Card** – § 87(2)(g) and **Allegation J: Abuse of Authority – Failure to Provide RTKA Card** – § 87(2)(g) All four officers left.

§ 87(2)(g), § 87(4-b)

§ 87(2)(b) provided a video of the incident shot on a phone by an unidentified witness; it is attached to IA # 10 (Board Review 06) and summarized in IA #53 (Board Review 07). No body-worn camera (BWC) footage was located pertaining to this incident. Lieutenant Hirsch and Sergeant Cuevas were not equipped with a BWC at the time. Police Officer Canady and Police Officer Trimarchi improperly did not turn on their BWCs § 87(2)(g), § 87(4-b) BWC footage captured by Police Officer Joseph Ardolino, Police Officer Brian Doyle, Police Officer Kelly Murphy, Police Officer Michael Desposito, and Police Officer Sean Walsh at an unrelated arrest shortly after this incident was requested, as it captures Lieutenant Hirsch, Sergeant Cuevas, Police Officer Canady, and Police Officer Trimarchi. It is linked to IAs #121-127 (Board Review 20-26) and summarized in IA #141 (Board Review 40). Screen captures from these videos identifying Lieutenant Hirsch, Sergeant Cuevas, Police Officer Canady, and Police Officer Trimarchi are linked to IAs #129-140 (Board Review 28-39).

Findings and Recommendations

Allegation (A) Abuse of Authority: Lieutenant Forrest Hirsch stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Lieutenant Forrest Hirsch frisked § 87(2)(b)

Allegation (C) Abuse of Authority: Sergeant Gabriel Cuevas frisked § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Nicki Canady frisked § 87(2)(b)

Allegation (E) Abuse of Authority: Lieutenant Forrest Hirsch searched § 87(2)(b)

Allegation (F) Abuse of Authority: Sergeant Gabriel Cuevas searched § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Nicki Canady searched § 87(2)(b)

§ 87(2)(b) was interviewed by the CCRB by telephone on February 5, 2021 (Board Review 01). Lieutenant Hirsch was interviewed by the CCRB on June 24, 2021 (Board Review 02). Police Officer Canady was interviewed by the CCRB on September 7, 2021 (Board Review 03). Sergeant Cuevas was interviewed by the CCRB on November 3, 2021 (Board Review 04). Police Officer Trimarchi was interviewed by the CCRB on January 14, 2022 (Board Review 05).

§ 87(2)(b) testified that as he walked, a Ford Taurus containing four officers stopped, and that the officers in the vehicle exited the vehicle. The officers stopped him, frisked and searched him, and left without offering or providing business cards. He believed that some of the officers in this group, including Police Officer Canady, whom he identified by name, were also part of a group of officers who stopped him nearly a year later, on § 87(2)(b) § 87(2)(b)

The cellphone video provided by § 87(2)(b) appears to have been shot by an individual observing the stop from across the street (Board Review 06). It captures a group of four officers, evidently including two white males, a Hispanic male, and a black female, who match the physical and demographic pedigree of Lieutenant Hirsch, Sergeant Cuevas, Police Officer Canady, and Police Officer Trimarchi's group. The shorter white male wears a dark hat, dark sweatshirt with a white or light-colored design on the front, and lighter colored pants. The officer next to him is a short, tan-skinned male and wears a blue sweatshirt with a white mark on the upper left chest and dark pants. The taller white male wears a black jacket or sweatshirt, black baseball cap, and blue jeans. The final officer, a black female, wears a black, possibly knit hat, black sweatshirt, and black pants. These officers appear to stop § 87(2)(b) and three of the officers (excluding the taller of the two white males) appear to frisk and/or search § 87(2)(b)

Screen captures from § 87(2)(b)'s video are linked to IA #128 (Board Review 27) and show the officers walking away from § 87(2)(b)

Lieutenant Hirsch denied being in the vicinity of the intersection of Rochester Avenue and Saint Marks Avenue in Brooklyn at approximately 10:30 p.m. on March 5, 2020. He testified that he was in the confines of the 73rd Precinct at that time, at a "gun arrest" by officers he was supervising, for which he had BWC footage. He testified that at some point later he went to the 73rd Precinct stationhouse, which he left twenty minutes later. He then "made [his] way eventually to the 75th Precinct." Lieutenant Hirsch did not believe that he was in the vicinity of Rochester Avenue and Saint Marks Avenue at any point during his tour on the date of the incident. He denied interacting with anyone named § 87(2)(b) during his tour and denied interacting with anyone who fit the description of an approximately 6'0" tall, 150-pound Black male with black hair and brown eyes, as § 87(2)(b) described himself, during his tour on the date of the incident. When shown the footage submitted by § 87(2)(b) Lieutenant Hirsch did not recognize anyone shown in the video and did not see himself in the video. The video did not refresh his recollection of any incident

he was involved in on that day.

Sergeant Cuevas denied having any knowledge of a stop of § 87(2)(b) conducted by himself or other officers. He testified that according to his memo book, he was at an arrest at the rear of 603 Stone Avenue in Brooklyn at 10:39 p.m. He did not recall what happened before or after this arrest. He was unfamiliar with the name § 87(2)(b) and did not recall being at the intersection of Rochester Avenue and Saint Marks Avenue during his tour on March 5, 2020. Details of § 87(2)(b)'s incident did not refresh Sergeant Cuevas's recollection of involvement in the stop of § 87(2)(b). Sergeant Cuevas did not recognize anyone from § 87(2)(b)'s video and did not see himself in the video.

Police Officer Canady had no recollection of an incident occurring at approximately 10:30 p.m. on March 5, 2020, in the vicinity of Rochester Avenue and Saint Marks Avenue. She had no recollections from her tour from around 10:30 p.m. on that date in general and was not familiar with the name § 87(2)(b). She did not know if she was at the intersection of Rochester Avenue and Saint Marks Avenue during her tour on the date of the incident. She denied stopping anyone who matched § 87(2)(b)'s description. Details of § 87(2)(b)'s incident did not refresh Police Officer Canady's recollection. Police Officer Canady could not tell whether she recognized anyone in the video submitted by § 87(2)(b). She did not believe that the figure in the video looked like her but noted that she could not tell as the video was "small." She did not recognize anyone else shown in the video. Police Officer Canady denied stopping § 87(2)(b) placing him against a wall, frisking or searching him on March 5, 2020, and denied being aware of any other officers doing so.

Police Officer Trimarchi had no recollection of an incident occurring at approximately 10:30 p.m. on March 5, 2020, in the vicinity of Rochester Avenue and Saint Marks Avenue. He had no recollections from his tour on the date of the incident, was unfamiliar with the name § 87(2)(b) and did not know if he was at the intersection of Rochester Avenue and Saint Marks Avenue during his tour on March 5, 2020. He did not recall participating in any stop of a Black male during his tour on March 5, 2020. Details from § 87(2)(b)'s testimony did not refresh Police Officer Trimarchi's recollection of the incident. To the best of his recollection, Police Officer Trimarchi did not stop § 87(2)(b) during his tour on March 5, 2020 and was not aware of any other officers doing so. Police Officer Trimarchi did not recognize anyone shown in § 87(2)(b)'s video but noted that the footage was somewhat grainy and far away, so he had trouble seeing.

BWC from the arrest at 603 Stone Avenue that Lieutenant Hirsch and Sergeant Cuevas mentioned in their testimonies, which is a few minutes' drive from the location of § 87(2)(b)'s stop, shows Lieutenant Hirsch, Sergeant Cuevas, Police Officer Canady, and Police Officer Trimarchi, all wearing the corresponding clothes worn by the officers in the cellphone video of § 87(2)(b)'s stop. Screenshots from these videos showing Lieutenant Hirsch, Sergeant Cuevas, Police Officer Canady and Police Officer Trimarchi are linked to IAs #129-140 (Board Review 28-39). Based on the timestamps in these videos, this other incident most likely occurred minutes after § 87(2)(b)'s incident.

People v. DeBour, 40 N.Y.2d 210 outlines the requirements for an officer to conduct a stop of an individual. Officers must have reasonable suspicion that a particular person has committed, is committing, or is about to commit a felony or misdemeanor in order to forcibly stop and detain that person (Board Review 43).

Patrol Guide Procedure 212-11 instructs that officers may conduct a Terry Stop/Level 3 encounter,

in which a reasonable person would not feel free to disregard the officer and walk away, if they have an individualized reasonable suspicion that the person stopped has committed, is committing, or is about to commit a felony or Penal Law misdemeanor (Board Review 19). A frisk requires that the officers have a reasonable suspicion that the individual is armed, and a search requires that the officers have probable cause to believe that they are in possession of contraband.

§ 87(2)(g)

[REDACTED]

Allegation (H) Abuse of Authority: Lieutenant Forrest Hirsch failed to provide § 87(2)(b) with a business card.

Allegation (I) Abuse of Authority: Sergeant Gabriel Cuevas failed to provide § 87(2)(b) with a business card.

Allegation (J) Abuse of Authority: Police Officer Nicki Canady failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) testified that none of the officers offered him a business card.

The cellphone video shows the four officers walking away from § 87(2)(b) without apparently providing business cards.

As mentioned above, none of the officers recalled the incident or recognized themselves within § 87(2)(b)'s video.

New York City Administrative Code 14-174 instructs that officers must identify themselves when stopping, frisking, and/or searching an individual, providing their name, rank, and command. It further requires officers to offer a business card to the subject of the police action if the stop, frisk, and search do not result in an arrest or summons (Board Review 41).

Patrol Guide Procedure 212-11 also instructs officers to offer an RTKA business card after conducting a level 3 stop.

§ 87(2)(g)

[REDACTED]

§ 87(2)(g), § 87(4-b)

[REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]

[REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]

[REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]

_____.
_____.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to one additional CCRB complaint and has been named as a

victim in 15 additional allegations (Board Review 16)

- § 87(2)(b) [REDACTED]
[REDACTED]
[REDACTED].
- Lieutenant Hirsch has been a member of service for 15 years and has been a subject in 17 additional CCRB complaints and 59 additional allegations, of which nine were substantiated.
 - 201016064 involved a substantiated allegations of frisk and stop against Lieutenant Hirsch. The Board recommended Charges, and the NYPD imposed Instructions.
 - 201306080 involved substantiated allegations of premises entered and/or searched and offensive language: race against Lieutenant Hirsch. The Board recommended Charges, and Lieutenant Hirsch was found guilty of premises entered and/or searched and forfeited five vacation days. He was found not guilty of offensive language: race.
 - 201908017 involved substantiated allegations of discourteous action and discourteous word against Lieutenant Hirsch. The Board recommended Charges, and the NYPD has not yet imposed discipline.
 - 202002052 involved substantiated allegations of failure to provide RTKA card, stop, and vehicle search against Lieutenant Hirsch. The Board recommended Command Discipline B, and the NYPD has not yet imposed discipline.
 - § 87(2)(g) [REDACTED]
[REDACTED].
- Sergeant Cuevas has been a member of service for 14 years and has been a subject in 17 additional CCRB complaints and 50 additional allegations, of which nine were substantiated.
 - 201610447 involved substantiated allegations of frisk, refusal to provide name/shield number, and stop against Sergeant Cuevas. The Board recommended Command Discipline B, and the NYPD imposed Command Discipline A.
 - 201804454 involved substantiated allegations of frisk and search of a person against Sergeant Cuevas. The Board recommended Command Discipline B, and the NYPD imposed Command Discipline A.
 - 201909824 involved two substantiated allegations of frisk and two substantiated allegations of search of a person against Sergeant Cuevas. The Board recommended Command Discipline B, and the NYPD imposed Command Discipline B, for which Sergeant Cuevas forfeited five vacation days.
 - § 87(2)(g) [REDACTED]
[REDACTED].
- Police Officer Canady has been a member of service for six years and has been a subject in 12 additional CCRB complaints and 34 additional allegations, of which one was substantiated.
 - 202002052 involved a substantiated allegation of a stop against Police Officer Canady. The Board recommended Command Discipline A, and the NYPD has not yet imposed discipline.
 - § 87(2)(g) [REDACTED]
[REDACTED].

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of November 9, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (Board Review 42).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 2

Investigator:	<u>Rachel Murgo</u>	<u>Inv. Rachel Murgo</u>	<u>02/11/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Alexander Opoku-Agyemang</u>	<u>IM Opoku-Agyemang</u>	<u>2/14/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date